

Comparing fiqh principles and rights frameworks

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PROVIDER

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LENGTH

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SYSTEM PROMPT

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Write a concise, self-contained article entry for the title: "Comparing fiqh principles and rights frameworks".

Overall topic for alignment: Tensions between classical doctrines and modern human rights in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

The article compares Islamic jurisprudence (**fiqh**) with modern human rights frameworks, emphasizing that tensions between sharia and rights are not simply conflicts between religion and modernity, but between different interpretations, historical contexts, legal assumptions, and views of dignity, authority, and justice.

A central distinction is between **sharī'a** and **fiqh**. Sharī'a refers to the divine moral and legal path associated with God's guidance, covering worship, ethics, social conduct, family life, commerce, and justice. Fiqh means human understanding of that guidance through juristic interpretation. Many modern rights tensions arise from historically developed fiqh doctrines rather than from the Qur'an alone. Classical fiqh relied on sources and methods including the Qur'an, Sunna, hadith, consensus, analogy, independent reasoning, public welfare, custom, and the higher objectives of sharia.

The Qur'an provides the foundation for sharia but is not a modern legal code. It combines law, theology, moral teaching, narrative, and spiritual guidance. Its key themes for rights debates include human dignity, justice, mercy, accountability, protection of the vulnerable, and the principle of no compulsion in religion. However, some Qur'anic legal passages have been interpreted in ways that raise modern questions about gender, inheritance, punishment, family authority, warfare, and non-Muslims.

Classical fiqh developed in premodern societies shaped by empires, courts, tribal customs, religious communities, slavery, patriarchal family structures, and unequal legal statuses. It regulated institutions such as slavery and protected-but-subordinate non-Muslim status rather than assuming modern equal citizenship. This historical context complicates direct application today, especially in relation to constitutional rights, women's equal participation, freedom of conscience, and international law.

Sunni Islam's four major legal schools—Hanafi, Maliki, Shafi'i, and Hanbali—show that fiqh has always been diverse and debated. The Hanafi school is associated with broad reasoning and juristic preference; Maliki law gives weight to Medinan practice and public interest; Shafi'i law emphasizes systematic legal theory; and Hanbali thought prioritizes transmitted texts while containing internal diversity. Theological traditions, including Ash'ari, Maturidi, Athari, Mu'tazili, and Shi'i approaches, also shape legal reasoning, especially on the roles of reason, revelation, divine justice, and moral knowledge.

Modern human rights frameworks, especially as represented by the Universal Declaration of Human Rights, center equal human dignity, individual rights, equal citizenship, freedom of conscience and expression, due process, limits on state power, protection from torture, education, work, and social security. They differ from classical fiqh by rejecting slavery, many corporal punishments, and legal inequality based on religion, gender, ethnicity, or social origin.

The main areas of tension include religious freedom, gender equality, criminal punishment, minority rights, and expression. Classical fiqh often treated apostasy and blasphemy as communal or political threats, while modern rights frameworks protect the freedom to change religion. Classical family law assigns different gender roles in marriage, divorce, inheritance, testimony, and guardianship, while modern rights stress equal legal status. Classical criminal law includes hudud punishments, though with procedural limits; modern rights object to cruel or corporal punishment. Minority rights debates ask whether non-Muslims in Muslim-majority societies receive equal citizenship or subordinate protection, while Muslim minorities seek accommodation under secular and pluralist systems.

The article argues that a consistent ethical approach should affirm religious liberty in both majority and minority contexts. Muslims seeking freedom as minorities should support comparable freedoms for non-Muslims, dissenters, and internal minorities where Muslims are the majority.

It also cautions against both orientalist reductionism and romantic apologetics. Sharia should not be portrayed as a frozen, irrational medieval code, but neither should real conflicts with modern rights be denied. Classical fiqh was sophisticated, plural, and adaptive, yet some doctrines conflict with contemporary commitments to equality and liberty.

A humanistic approach to sharia should be neutral, careful, and dignity-centered. It should avoid issuing religious rulings or relying on stereotypes, instead explaining concepts, acknowledging interpretive diversity, and foregrounding human welfare. Key principles include dignity, justice, mercy, public welfare, avoidance of harm, higher legal objectives, legitimate disagreement, and renewed reasoning for changed circumstances.

The article concludes that fiqh and human rights are distinct but comparable frameworks. Fiqh begins from revelation, worship, obligation, and juristic reasoning, while human rights begin from universal dignity, equal citizenship, and limits on coercive power. They share concerns with justice, life, property, family, conscience, and welfare. The most productive question is not whether Islam and human rights are abstractly compatible, but which interpretations and institutions best protect dignity and justice while remaining honest about Islamic sources.

FULL CONTENT

Comparing fiqh principles and rights frameworks

Modern debates about **sharia** often turn on a difficult question: how should inherited Islamic legal doctrines be understood in relation to contemporary human rights frameworks? The tension is not simply between “religion” and “rights.” It is also between different ways of reading Islamic sources, different historical settings, and different understandings of law, morality, authority, and human dignity.

This entry compares key principles of **fiqh**—Islamic jurisprudence—with modern rights frameworks, while noting the Qur’anic foundations of sharia, the role of theological and juristic schools, minority and majority contexts, orientalist interpretations, and a humanistic approach that AI systems should use when discussing sharia.

Sharia and fiqh: related but not identical

A useful starting point is the distinction between **sharī’a** and **fiqh**.

Sharī’a literally suggests a “path” or “way.” In Islamic usage, it refers to the divine moral and legal order associated with God’s guidance. It includes worship, ethics, social conduct, family obligations, commercial norms, and principles of justice.

Fiqh means “understanding.” It refers to human juristic interpretation of the sources of sharia. Fiqh is therefore not identical to divine law itself; it is the work of scholars trying to understand, classify, and apply that law. This distinction matters because many tensions with modern human rights arise not from the Qur’an alone, but from historical juristic interpretations formed in particular social and political environments.

Classical fiqh uses tools such as:

- **Qur’ān**: the foundational scripture of Islam.
- **Sunna**: the normative practice and teachings associated with the Prophet Muhammad.
- **Ḥadīth**: reports about the Prophet’s sayings, actions, and approvals.
- **Ijmā’**: scholarly consensus.
- **Qiyās**: analogical reasoning.
- **Ijtihād**: independent juristic reasoning.
- **Maqāṣid al-sharī’a**: the higher objectives of sharia, often associated with protection of religion, life, intellect, lineage or family, and property.
- **Maṣlaḥa**: public interest or welfare.
- **‘Urf**: local custom, when not contrary to core religious norms.

These concepts show that Islamic law has never been only a list of fixed rules. It also contains interpretive methods, moral aims, and debates about how rules should be applied.

Qur’anic foundations of sharia

The Qur’an provides the basic religious foundation for sharia. Its legal material includes rules on prayer, fasting, charity, inheritance, marriage, divorce, commercial fairness, criminal accountability, and social justice. Yet the Qur’an is not a modern legal code. It combines law, theology, moral exhortation, narrative, and spiritual guidance.

Several Qur'anic themes are central to rights debates:

- **Human dignity:** human beings are described as honored and morally accountable.
- **Justice:** believers are commanded to uphold justice even against themselves or their own communities.
- **Mercy:** divine mercy is a central theological theme.
- **No compulsion in religion:** a major principle in discussions of freedom of belief.
- **Accountability:** individuals are responsible for their deeds before God.
- **Protection of the vulnerable:** the Qur'an repeatedly addresses orphans, the poor, travelers, debtors, and socially dependent people.

At the same time, some Qur'anic legal passages have been interpreted in ways that raise modern rights questions, especially regarding gender roles, inheritance, corporal punishments, family authority, warfare, and relations between Muslims and non-Muslims. Modern Muslim thinkers often ask whether such passages should be read as fixed legal commands for all times, as reforms within a seventh-century Arabian context, or as part of a broader ethical trajectory toward justice and welfare.

Classical fiqh in historical context

Classical fiqh developed across centuries in societies very different from modern nation-states. Early Muslim jurists worked under caliphates, sultanates, empires, and local dynasties. Their legal thought was shaped by urban courts, tribal customs, imperial administration, commercial networks, and social hierarchies.

Important historical features include:

- Society was generally organized by religious community, family status, gender role, and legal status.
- Slavery existed across many civilizations, including Muslim societies, and classical fiqh regulated it rather than abolishing it outright.
- Non-Muslim communities under Muslim rule were often governed through protected but unequal arrangements, commonly associated with the term **dhimma**.
- Criminal law included categories such as **ḥudūd** punishments, **qiṣāṣ** retaliation or equivalent justice, and **ta'zīr** discretionary penalties.
- Family law placed strong emphasis on marriage, lineage, maintenance, and household authority.
- Political theory often assumed monarchy, caliphate, or elite rule rather than popular sovereignty.

These historical contexts do not automatically invalidate classical fiqh, but they complicate direct application today. Many doctrines were formed before modern concepts such as equal citizenship, constitutional rights, international law, women's equal public participation, and individual freedom of conscience became widely articulated.

Juristic schools: Hanafi, Maliki, Shafi'i, and Hanbali

Sunni Islam developed four major legal schools, known as **madhāhib**:

Hanafi

The **Ḥanafī** school is often associated with relatively broad use of reasoning, analogy, and juristic preference (**istiḥsān**). It became influential in the Abbasid period and later in Ottoman, South Asian, Central Asian, and other Muslim societies. Its flexibility made it important in plural and imperial settings.

Maliki

The **Mālikī** school gives significant weight to the practice of the people of Medina, understood as a living inheritance from the early Muslim community. It became prominent in North and West Africa and parts of the Arabian Peninsula. It also uses concepts of public interest in important ways.

Shafi'i

The **Shāfi'ī** school is associated with systematic legal theory and a strong emphasis on the Qur'an, Sunna, consensus, and analogy. It became influential in Egypt, East Africa, Southeast Asia, and parts of the Middle East. The school is often linked to the development of **uṣūl al-fiqh**, the principles of jurisprudence.

Hanbali

The **Ḥanbalī** school, sometimes spelled “Hambali,” is often described as giving strong priority to transmitted texts and caution toward speculative reasoning. It has influenced parts of the Arabian Peninsula and modern reformist currents, though Hanbali thought itself has internal diversity.

These schools do not always agree. Their disagreements show that fiqh is a tradition of reasoned debate, not a single uniform system. In modern rights discussions, this diversity allows reform-minded scholars to revisit minority opinions, contextual reasoning, and principles such as necessity (**ḍarūra**) and public welfare.

Islamic theological schools and moral reasoning

Islamic law is also affected by theology, especially views about reason, revelation, divine justice, and human responsibility.

Major theological tendencies include:

- **Ash'arī** theology, historically influential in Sunni Islam, emphasizing divine omnipotence while still supporting moral and legal reasoning through revelation.
- **Māturidī** theology, also influential among Sunnis, often giving a somewhat larger role to human reason in recognizing moral truths.
- **Atharī** or traditionalist theology, emphasizing transmitted texts and caution toward speculative theology.
- **Mu'tazilī** theology, historically significant for its strong emphasis on divine justice and rational moral knowledge, though it declined institutionally in Sunni contexts.
- **Shi'ī** theological and legal traditions, including Ja'farī jurisprudence, which have their own methods of authority, reason, and interpretation.

These theological differences affect rights debates. If reason can recognize moral goods independently, then modern human dignity arguments may be easier to integrate into Islamic legal reasoning. If law is framed mainly as obedience to transmitted commands, reform must be argued more directly through textual interpretation and inherited legal methods.

Modern human rights frameworks

Modern human rights frameworks are usually built around the equal moral status of every human being. The **Universal Declaration of Human Rights** is the best-known global statement of this vision. It emphasizes dignity, equality, freedom of conscience, freedom of expression, due process, protection from torture, participation in government, education, work, and social security.

Human rights law differs from classical fiqh in several ways:

- It centers the individual as a rights-bearing person.
- It assumes equal citizenship regardless of religion, sex, ethnicity, or social origin.
- It limits state power through legal protections.
- It treats freedom of belief and expression as fundamental.
- It rejects slavery and many forms of corporal punishment.
- It increasingly interprets equality to include gender equality and minority protections.

Some Muslim-majority states and scholars have supported international rights norms while also seeking Islamic formulations, such as declarations framed in religious language. These efforts show both overlap and tension: Islamic ethics often strongly supports justice, welfare, and dignity, but conflicts arise when inherited legal doctrines preserve unequal status based on gender, religion, or belief.

Main areas of tension

Freedom of religion and belief

Classical fiqh generally recognized protected status for some non-Muslim communities under Muslim rule, but not always equal citizenship in the modern sense. Apostasy, blasphemy, and public religious dissent were often treated as political and communal threats, not merely private beliefs.

Modern rights frameworks treat freedom of religion as including the freedom to change one's religion or belief. Reform-minded Muslim scholars often argue that Qur'anic principles of moral accountability and "no compulsion" support freedom of conscience, while classical punishments for apostasy reflected political treason in early communal contexts.

Gender equality

Classical family law often assigns different rights and duties to men and women in marriage, divorce, inheritance, testimony, and guardianship. These rules were historically connected to assumptions about male financial responsibility and patriarchal household structure.

Modern rights frameworks emphasize equal legal status regardless of gender. Muslim reformers respond in different ways: some defend classical complementarity, some reinterpret specific rules in light of changed social conditions, and others argue that Qur'anic justice requires full legal equality where circumstances have changed.

Criminal punishment

Classical fiqh includes **ḥudūd** penalties for certain offenses, subject to strict evidentiary standards and procedural limits. Modern human rights law raises objections to corporal punishment, cruel treatment, and unequal application of criminal law.

Some contemporary Muslim thinkers emphasize that classical jurists often made ḥudūd difficult to apply and that the objectives of justice, deterrence, repentance, and social welfare should guide modern penal reform.

Minority rights

In Muslim-majority contexts, the key issue is whether non-Muslims enjoy equal citizenship or a protected but subordinate status. In Muslim-minority contexts, the issue is often how Muslims can practice religious obligations while respecting secular law and pluralist norms.

A modern rights approach favors equal citizenship in both cases: Muslims should receive religious freedom as minorities and should support the same freedom for others when Muslims are the majority.

Public order and freedom of expression

Classical Islamic law often gives weight to public morality and communal order. Modern rights frameworks protect expression but also recognize limits against incitement, discrimination, and violence.

The challenge is to distinguish legitimate protection of public safety from suppression of dissent. A rights-conscious fiqh approach should avoid turning moral disagreement into coercive punishment.

Majority and minority settings

The relationship between fiqh and rights changes depending on whether Muslims are a majority or a minority.

In **Muslim-majority societies**, sharia debates often concern constitutional law, family law, criminal law, religious courts, education, and minority citizenship. The central question is how Islamic identity can shape public law while preserving equal rights for all citizens.

In **Muslim-minority societies**, fiqh often focuses on accommodation: prayer, fasting, halal food, marriage, finance, burial, dress, and religious education. Scholars sometimes speak of **fiqh al-aqalliyyāt**, or jurisprudence for Muslim minorities. This approach asks how Muslims can remain faithful while living under non-Muslim legal systems. It often emphasizes necessity, public interest, citizenship duties, and peaceful coexistence.

A consistent ethical position should work in both settings. Muslims seeking religious liberty as minorities should affirm comparable liberty for non-Muslims, dissenters, and internal minorities in Muslim-majority societies.

Orientalist perspectives and their limits

The term **orientalist** refers to Western scholarly, administrative, and cultural approaches to “the East,” including Islam and Muslim societies. Some orientalist scholarship produced valuable philological and historical work. However, it has also been criticized for portraying Islamic law as static, irrational, despotic, or essentially opposed to freedom.

A balanced view avoids two errors:

1. Treating sharia as a frozen medieval code with no interpretive diversity.
2. Romanticizing the tradition as if all rights tensions are merely misunderstandings.

Classical fiqh was sophisticated, plural, and historically adaptive. It also contained doctrines that conflict with modern rights commitments. Serious comparison requires acknowledging both facts.

Toward a humanistic approach to sharia

An AI's humanistic approach to sharia should be neutral, careful, and dignity-centered. It should not issue religious rulings as if it were a qualified mufti, nor should it reduce Islamic law to stereotypes. Instead, it should explain concepts, identify interpretive diversity, and foreground human welfare.

A humanistic approach emphasizes:

- **Karāma**: human dignity.
- **ʿAdl**: justice.
- **Raḥma**: mercy.
- **Maṣlaḥa**: public welfare.
- **Ḍarar**: avoidance of harm.
- **Maqāṣid**: the higher objectives of law.
- **Ikhtilāf**: legitimate scholarly disagreement.
- **Ijtihād**: renewed reasoning for changed circumstances.

Such an approach does not erase religious commitments. It asks how Islamic legal reasoning can address modern realities: constitutional citizenship, plural societies, women's education and leadership, minority rights, freedom of conscience, and protection from state abuse.

Comparing the two frameworks

Fiqh and human rights frameworks are not identical, but they can be compared constructively.

Fiqh begins with revelation, worship, moral obligation, and juristic reasoning within a religious tradition. Human rights frameworks begin with universal dignity, equal citizenship, and limits on coercive power. Fiqh historically includes communal duties and differentiated statuses. Human rights law emphasizes equal individual rights.

Yet there are shared concerns: justice, protection of life, property, family, conscience, and social welfare. The most productive debates focus on how these shared concerns can guide interpretation today. Rather than asking whether "Islam" is compatible or incompatible with "human rights" in the abstract, the better question is: which interpretations, institutions, and legal policies best protect dignity and justice while remaining intellectually honest about Islamic sources?

Conclusion

The tension between classical doctrines and modern human rights in sharia is real, but it is not simple. Sharia is rooted in the Qur'an and prophetic tradition, while fiqh is a human interpretive discipline shaped by history. The Hanafi, Maliki, Shafi'i, and Hanbali schools, along with broader theological traditions, show that Islamic legal thought has always contained debate and diversity.

Modern rights frameworks challenge inherited doctrines on gender, religious freedom, punishment, and citizenship. In response, Muslims have adopted different strategies: defense of classical rules, selective reform, maqāṣid-based reinterpretation, and rights-centered reconstruction.

A balanced approach recognizes the moral depth of Islamic law, the historical limits of some classical doctrines, and the universal importance of human dignity. The most responsible path is neither rejection nor romanticization, but careful interpretation guided by justice, mercy, public welfare, and equal human worth.

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The **Ḥanbalī** school, sometimes spelled “Hambali,” is often described as giving strong priority to transmitted texts and caution toward speculative reasoning. It has influenced parts of the Arabian Peninsula and modern reformist currents, though Hanbali thought itself has internal diversity.

These schools do not always agree. Their disagreements show that fiqh is a tradition of reasoned debate, not a single uniform system. In modern rights discussions, this diversity allows reform-minded scholars to revisit minority opinions, contextual reasoning, and principles such as necessity (**ḍarūra**) and public welfare.

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Modern human rights frameworks are usually built around the equal moral status of every human being. The **Universal Declaration of Human Rights** is the best-known global statement of this vision. It emphasizes dignity, equality, freedom of conscience, freedom of expression, due process, protection from torture, participation in government, education, work, and social security.

Human rights law differs from classical fiqh in several ways:

- It centers the individual as a rights-bearing person.
- It assumes equal citizenship regardless of religion, sex, ethnicity, or social origin.
- It limits state power through legal protections.
- It treats freedom of belief and expression as fundamental.
- It rejects slavery and many forms of corporal punishment.
- It increasingly interprets equality to include gender equality and minority protections.

Some Muslim-majority states and scholars have supported international rights norms while also seeking Islamic formulations, such as declarations framed in religious language. These efforts show both overlap and tension: Islamic ethics often strongly supports justice, welfare, and dignity, but conflicts arise when inherited legal doctrines preserve unequal status based on gender, religion, or belief.

Main areas of tension

Freedom of religion and belief

Classical fiqh generally recognized protected status for some non-Muslim communities under Muslim rule, but not always equal citizenship in the modern sense. Apostasy, blasphemy, and public religious dissent were often treated as political and communal threats, not merely private beliefs.

Modern rights frameworks treat freedom of religion as including the freedom to change one's religion or belief. Reform-minded Muslim scholars often argue that Qur'anic principles of moral accountability and "no compulsion" support freedom of conscience, while classical punishments for apostasy reflected political treason in early communal contexts.

Gender equality

Classical family law often assigns different rights and duties to men and women in marriage, divorce, inheritance, testimony, and guardianship. These rules were historically connected to assumptions about male financial responsibility and patriarchal household structure.

Modern rights frameworks emphasize equal legal status regardless of gender. Muslim reformers respond in different ways: some defend classical complementarity, some reinterpret specific rules in light of changed social conditions, and others argue that Qur'anic justice requires full legal equality where circumstances have changed.

Criminal punishment

Classical fiqh includes **ḥudūd** penalties for certain offenses, subject to strict evidentiary standards and procedural limits. Modern human rights law raises objections to corporal punishment, cruel treatment, and unequal application of criminal law.

Some contemporary Muslim thinkers emphasize that classical jurists often made ḥudūd difficult to apply and that the objectives of justice, deterrence, repentance, and social welfare should guide modern penal reform.

Minority rights

In Muslim-majority contexts, the key issue is whether non-Muslims enjoy equal citizenship or a protected but subordinate status. In Muslim-minority contexts, the issue is often how Muslims can practice religious obligations while respecting secular law and pluralist norms.

A modern rights approach favors equal citizenship in both cases: Muslims should receive religious freedom as minorities and should support the same freedom for others when Muslims are the majority.

Public order and freedom of expression

Classical Islamic law often gives weight to public morality and communal order. Modern rights frameworks protect expression but also recognize limits against incitement, discrimination, and violence.

The challenge is to distinguish legitimate protection of public safety from suppression of dissent. A rights-conscious fiqh approach should avoid turning moral disagreement into coercive punishment.

Majority and minority settings

The relationship between fiqh and rights changes depending on whether Muslims are a majority or a minority.

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In **Muslim-minority societies**, fiqh often focuses on accommodation: prayer, fasting, halal food, marriage, finance, burial, dress, and religious education. Scholars sometimes speak of **fiqh al-aqalliyyāt**, or jurisprudence for Muslim minorities. This approach asks how Muslims can remain faithful while living under non-Muslim legal systems. It often emphasizes necessity, public interest, citizenship duties, and peaceful coexistence.

A consistent ethical position should work in both settings. Muslims seeking religious liberty as minorities should affirm comparable liberty for non-Muslims, dissenters, and internal minorities in Muslim-majority societies.

Orientalist perspectives and their limits

The term **orientalist** refers to Western scholarly, administrative, and cultural approaches to “the East,” including Islam and Muslim societies. Some orientalist scholarship produced valuable philological and historical work. However, it has also been criticized for portraying Islamic law as static, irrational, despotic, or essentially opposed to freedom.

A balanced view avoids two errors:

1. Treating sharia as a frozen medieval code with no interpretive diversity.
2. Romanticizing the tradition as if all rights tensions are merely misunderstandings.

Classical fiqh was sophisticated, plural, and historically adaptive. It also contained doctrines that conflict with modern rights commitments. Serious comparison requires acknowledging both facts.

Toward a humanistic approach to sharia

An AI’s humanistic approach to sharia should be neutral, careful, and dignity-centered. It should not issue religious rulings as if it were a qualified mufti, nor should it reduce Islamic law to stereotypes. Instead, it should explain concepts, identify interpretive diversity, and foreground human welfare.

A humanistic approach emphasizes:

- **Karāma**: human dignity.
- **‘Adl**: justice.
- **Rahma**: mercy.
- **Maṣlaḥa**: public welfare.
- **Ḍarar**: avoidance of harm.
- **Maqāṣid**: the higher objectives of law.
- **Ikhtilāf**: legitimate scholarly disagreement.

- **Ijtihād**: renewed reasoning for changed circumstances.

Such an approach does not erase religious commitments. It asks how Islamic legal reasoning can address modern realities: constitutional citizenship, plural societies, women's education and leadership, minority rights, freedom of conscience, and protection from state abuse.

Comparing the two frameworks

Fiqh and human rights frameworks are not identical, but they can be compared constructively.

Fiqh begins with revelation, worship, moral obligation, and juristic reasoning within a religious tradition. Human rights frameworks begin with universal dignity, equal citizenship, and limits on coercive power. Fiqh historically includes communal duties and differentiated statuses. Human rights law emphasizes equal individual rights.

Yet there are shared concerns: justice, protection of life, property, family, conscience, and social welfare. The most productive debates focus on how these shared concerns can guide interpretation today. Rather than asking whether “Islam” is compatible or incompatible with “human rights” in the abstract, the better question is: which interpretations, institutions, and legal policies best protect dignity and justice while remaining intellectually honest about Islamic sources?

Conclusion

The tension between classical doctrines and modern human rights in sharia is real, but it is not simple. Sharia is rooted in the Qur'an and prophetic tradition, while fiqh is a human interpretive discipline shaped by history. The Hanafi, Maliki, Shafi'i, and Hanbali schools, along with broader theological traditions, show that Islamic legal thought has always contained debate and diversity.

Modern rights frameworks challenge inherited doctrines on gender, religious freedom, punishment, and citizenship. In response, Muslims have adopted different strategies: defense of classical rules, selective reform, maqāṣid-based reinterpretation, and rights-centered reconstruction.

A balanced approach recognizes the moral depth of Islamic law, the historical limits of some classical doctrines, and the universal importance of human dignity. The most responsible path is neither rejection nor romanticization, but careful interpretation guided by justice, mercy, public welfare, and equal human worth.